COURAGE MUSHUNJE

versus

ASSISTANT INSPECTOR SAIROS

And

CONSTABLE MOYO

And

INSPECTOR KUWANZA

And

THE COMMISSIONER GENERAL OF POLICE N.O

And

MINISTER OF HOME AFFAIRS & CULTURAL HERITAGE N.O

HIGH COURT OF ZIMBABWE
ZISENGWE J
MASVINGO, 25 September & 28 October 2025
Judgment delivered on 22 July 2026

*C. Chidyamakono; for the plaintiff*
*D. Machingauta; for the defendants*

ZISENGWE J: A routine search on plaintiff's motor vehicle at a roadblock at Nyika growth point, Masvingo soon spiralled out of control culminating in a tense and heated stand -off between the plaintiff and police officers manning that road block. In the wake of that stand-off the plaintiff ended up spending the night in police cells at Bikita Police Station. The incident occurred on 1 September 2021 at the height of the COVID-19 pandemic which ravaged the globe Zimbabwe not being spared.

The plaintiff is bitterly aggrieved by the treatment he allegedly received at the hands of the Police. He charges that the police were unjustifiably heavy handed, unfair and outright malicious in dealing with him on the day in question. He even claims that the police officers in question subjected him to torture and as if that was not bad enough, they denied him his right to communicate with his legal representative and relatives thereby abridging one of his constitutional rights.

The plaintiff's claim is based on a series of events which unfolded when he was stopped at the roadblock. He claims that instead of dealing with him in a professional and fair manner, the police officers manning the roadblock delayed him for an unusually long time and that things came to a head when he demanded that one of the police officers there-present wear his facemask properly. According to him this drew the ire of the officers for daring to challenge a police officer in that fashion. This was followed by one of his mobile phones being forcibly confiscated, purportedly for taking photographs of a police road block.

He was then handcuffed with the cuffs being tightly fastened around his wrists before being bundled onto the back of a police truck. To add insult to injury, so the allegations go, there were buckets of water in the same loading box of that motor vehicle resulting in him being drenched in water.

As if that was not bad enough he was subsequently detained overnight at Bikita police station some 10 kilometres from the roadblock. According to him his cellmates had no face-masks thereby exposing him to the deadly corona virus. He claims to have also been denied his right to contact his legal practitioner or relatives to inform them of his precarious situation and perhaps get assistance.

Further, he avers that one of his two mobile phones was snatched by one of the police officers and damaged.

He therefore seeks to recover the following in delictual damages:

a) US$10 000 (or its equivalent in local currency) as damages for torture
b) US$ 10 000 (or its equivalent in local currency) as damages for unlawful detention
c) US$ 10 000 (or its equivalent in local currency) as damages for violation of plaintiff's right to communicate with his legal practitioner or relatives.
d) US$1000 (or equivalent in local currency) for damage to his cell phone

He also seeks interest on the above sums at the rate of 5% per annum and costs on the attorney & client scale.

He identifies the first three defendants as the police officers who subjected him to the unlawful treatment at the roadblock and at Bikita Police Station and cites the fourth and fifth defendants on the basis of various liability.

The defendant's dispute the claim in its entirety. In their common plea, they point out that the first defendant Inspector Sairos was not even initially present at the roadblock. However, while confirming the arrival of the plaintiff at the roadblock and him being subjected to a search, they deny any heavy handedness or impropriety in dealing with him. More particularly they deny having taken umbrage with plaintiff reprimanding the first defendant for wearing his face mask improperly. They aver that what set in motion the series of rather dramatic events were three things, firstly plaintiff's disorderly conduct in hurling verbal abuse including vulgarity at the police officers, secondly the plaintiff's conduct in taking photographs at a security roadblock and thirdly the discovery of a Berretta pistol in the plaintiff's motor vehicle whose serial number did not correspond with the one on the firearm certificate which the plaintiff produced.

They deny having confiscated the plaintiff's phone but aver that the plaintiff voluntarily surrendered his S10 cell phone (not an S20 as alleged by the plaintiff) for purposes of ascertainment of the nature of the photographs he had taken at the roadblock.

They also deny having fastened the handcuffs tightly on plaintiff's wrist or having caused him to be drenched in water *en route* from the roadblock Bikita Police Station. They further deny that his arrest and subsequent detention were malicious or actionable as they acted upon reasonable suspicion of plaintiff having committed offences.

Further, contrary to plaintiff's averments, they assert that he (i.e. plaintiff) steadfastly declined to exercise his right to legal representation. They also deny that the plaintiff's fellow inmates in the holding cells had no masks.

Finally, they deny that plaintiff paid the deposit fine out of coercion but that he did so out of his own volition for disorderly conduct and for unauthorised photographing of a police security check.

In a word therefore the defendants averred in that plea as they did throughout the ensuing trial that the claim is meritless and accordingly pray for its dismissal in its entirety.

The plaintiff filed a replication wherein he stuck to his guns. He maintained that the police details acted maliciously and unlawfully and are liable to the damages sought in the summons.

The parties filed a joint pre-trial minute wherein the following were identified as the issues for determination.

a) Whether or not the first, second and third defendants violated the plaintiff's constitutional rights in terms of s 50(1)(a) of the Constitution by failing to advise the plaintiff of the reason for the arrest, s 50(5)(b) by denying him the right to legal representation and (c) by denying him the right to advise his spouse and relatives of his right.
b) Whether or not the plaintiff was treated inhumanly and tortured by the first, second and third defendants upon his arrest and detention
c) Whether or not the defendants' conduct upon arrest and detention of the plaintiff was lawful in the circumstances.
d) Whether or not the first defendant forcibly took the plaintiff's mobile phone a Samsung S20 and subsequently broke it.
e) Whether or not the plaintiff suffered damages as a result of the defendants' conduct and the quantum thereof.

It was further agreed by the parties that the onus in respect of issues a, b, c d & e was on the plaintiff, however the issue in c above would be on the defendant.

**The evidence**

The plaintiff and his passenger on the day in question, Mutero Mutero were the witnesses for the plaintiff's case. Meanwhile three witnesses testified for the defendant's case, namely, Constable Silobitaba Moyo, Assistant Inspector Blessmore Sairos and Inspector Kuwanza

From the evidence as a whole it is common cause that in the early hours of the morning of 1 September 2021, the plaintiff arrived at a police roadblock mounted at Nyika business centre. He was on his way from Mutare to Zvishavane. He was driving a Toyota Corolla sedan motor vehicle. On board his motor vehicle were five passengers who from his evidence were essentially his employees. One of them was one Mutero Mutero who would subsequently testify in this matter as the second plaintiff's witness.

Upon the plaintiff's arrival at the said roadblock he was subjected to what one would assume to be a routine police check. However, it is common cause that matters soon got out of hand as a heated standoff between him and the police officers ensued.

It is further common cause that in the course of the search of the plaintiff's motor vehicle a Berretta pistol was discovered and that when the plaintiff averred at the roadblock the first defendant was not there and only arrived upon being called to come to the road block by the officers initially manning it. He was called in the wake of the heated exchanges between the plaintiff and those police officers with a view to him de-escalating those tensions and resolving the impasse. However, it appears from the evidence as a whole that his coming produced the opposite effect. This is because when he arrived his mask was lopsided or at least not worn properly. This then prompted the plaintiff make remarks to that effect. Whether Sairos took the admonition about the mask in his stride or it offended him enflaming an already tense situation is contested terrain.

Be that as it may, it is common cause that during the heated exchange which ensued, the plaintiff took photographs of the scene. This proved to be yet another incendiary moment as it provided further fuel to an already tense situation.

It is common cause that amidst all this a Police pick-up truck arrived at the road block and soon left. In it were police officers in plain clothes. It briefly left and returned with buckets of water in the loading box. The third defendant, i.e. Inspector Kuwanza was a passenger in that motor vehicle.

Also uncontested is the fact that the plaintiff who had now been placed under arrest and was now in handcuffs was ferried to Bikita police station, some ten odd kilometres away. He was ferried in the loading box of that single cab Toyota pick-up truck and was handcuffed to the anti-roll bars thereof. The last four kilometres of the journey to the police station is a gravel/dust road.

At the police station the plaintiff's matter was processed by Inspector Kuwanza and he was charged for disorderly conduct and was subsequently detained overnight by officer Revai.

The following day, i.e. 2 September 2021 the plaintiff paid an admission of guilt fine in the sum of ZWL1000 which was the equivalent of approximately US$10 at the time and was released. Following this encounter, the plaintiff consulted his legal practitioner and sued out summons for the recovery of the sums set out in the opening paragraphs of this judgment.

The broad question that begs to be answered is whether or not the police treated the plaintiff in a heavy handed fashion as to trample upon his rights in a manner leading to actionable conduct. In particular, however, the question is firstly whether or not the plaintiff was subjected to torture.

Secondly, the question is whether his detention was unlawful and therefore actionable. Thirdly, the court has to decide from the evidence whether the plaintiff was denied his right to communicate with his legal representatives and/or relatives in circumstances justifying an award of damages therefor. Finally, the court will have to decide from the evidence whether the plaintiff had in his possession a Samsung S20 cell phone during the heated confrontation and if so if the same was damaged in the ensuing melee, as alleged by the plaintiff.

**The plaintiff's case**

In his evidence the plaintiff portrayed a tale of heavy-handedness on the part of the police, the so-called police brutality. He indicated that upon his arrival at the roadblock, he was subjected to a lengthy and unjustified search of his motor vehicle. It was his evidence he was patently discriminated against as other motorists were not subjected to the same unusual search.

Further, without repeating his entire testimony here, the tenor of his evidence was that the police officer appeared to harbour a grudge against him from a previous encounter a few days earlier. The intensity and unusual meticulousness of the search bespoke of some ulterior motive. He also suggested from the overall impression of his evidence that the police offices at the roadblock and those who that later dealt with him at the police station was that of pomposity and grandiose sense of self-importance.

According to him the police officers took offence at him accusing them of being corrupt and taking bribes from the motoring public. What further drew the ire of the attending police details, according to him was his temerity to admonish Insp Sairos for wearing his face mask in a lopsided fashion leaving his mouth exposed.

His claim under the rubric of *torture* is predicated on the allegation that after his arrest handcuffs were deliberately tightly fastened on his wrists designedly to inflict pain and severe discomfort. He further testified that he was secured in the loading box of that police pick-up truck where there were buckets of water with the result that he was drenched on the way from the road block to the police station.

His claim under the heading of unlawful detention, is that his detention was utterly unnecessary in light of all the circumstances of the case. According to him, the detention was merely meant to 'fix' him for the earlier confrontation and his audacity to reprimand Insp Sairos over his face mask. According to him his detention overnight was no more than an extension of

the hostility and animosity by the police towards him which was carried over from the road block. His plea to have a deposit levied fell on deaf ears.

According to him the search on his motor vehicle was inordinately long which according to him stretched from about 6 am to approximately 11am.

He also stated that he was denied his right to seek legal representation which constituted an abridgment of his constitutional rights.

As alluded to earlier, the plaintiff called one of his passengers Mutero Mutero as a witness. The latter testified that upon arrival at the road block where they were all ordered to disembark after which the motor vehicle and all contents were subjected to a thorough and exacting search. He testified that the police officers there-present took umbrage at the plaintiff complaining that he was being unfairly treated in that other motor vehicles were not being subjected to similar searches. They labelled him stubborn and that was the turning point of their relationships which took a sudden nosedive.

According to him, the situation deteriorated when the plaintiff remonstrated with a male officer for not wearing his face mask properly. It was at that point that the plaintiff was arrested and handcuffed. Meanwhile statements were recorded from him and his fellow passengers. Soon he left, suffice it to say that he has no direct knowledge of what transpired from then on.

**The defendant's case**

Three witnesses testified for the defendant's case, Constable Silobitaba Moyo, Assistant Inspector Blessmore Sairos and Inspector Kawanza. The sum total of their evidence was a total denial of each of the plaintiff's claim. They portrayed the plaintiff as an un-cooperative, belligerent and uncouth individual who hurled obscenities at the police.

In particular, Constable Moyo testified that initially Assistant Inspector Sairos was not present and only arrived later well after the arrival of the plaintiff. It was her evidence that the plaintiff's motor vehicle arrived at the road block at approximately 6 am, shortly after the road block had been mounted. She described the plaintiff's motor vehicle as having been 'packed' which is what prompted her to cause it to be searched. This was particularly in light of the regulations obtaining at that time which prohibited people from travelling in large numbers. It was during the course of the search that they found a firearm on the motor vehicle and, when Sairos arrived she briefed him of that discovery.

Sairos then mentioned that he was on his way to Masvingo to deliver certain dockets.

According to her, when Sairos requested to see his firearm, the plaintiff became apoplectic and started hurling vulgar language at him. He chided Sairos and sarcastically told him to simply proceed to Masvingo where he intended to go as it was clear to him, i.e. plaintiff all that Sairos wanted was a lift.

According to Constable Moyo as if that was not enough, the plaintiff hurled profanities such as "*Mukosho wamai vako*" which when loosely translated means "*Your mother's ass hole*". He then turned to her and shouted" *You are corrupt*", I saw you receiving a bribe, *you are a thief*."

At that moment Sairos started recording what was happening using his mobile phone. A compact disk depicting what was recorded was produced in court as an exhibit accompanied with a transcription thereof.

When they compared the serial number inscribed on the firearm, they discovered that it differed from the one reflected on the firearm certificate/licence which the plaintiff produced.

Inspector Kuwaza was then apprised of the situation with the plaintiff and he came and took him to the police station. Immediately before being called he intended to fetch water with his police truck hence the buckets of water which were on his police truck.

She would confirm under cross examination that indeed plaintiff complained about Sairos not wearing his mask properly and that he i.e. plaintiff took pictures of the scene. A photograph depicting Sairos not wearing the mask properly was produced as an exhibit. Ms Chidyamakono for the plaintiff sparred with this witness in cross examination on whether taking photographs to gather evidence constituted an offence. In response the witness maintained that it was the conduct in hurling insults to the police which did. She however pointed out that taking photographs of a roadblock is not allowed unless one is a journalist because roadblocks are regarded as security points.

She would deny that it was only the plaintiff's motor vehicle which was searched at the roadblock but that it only happened to the first to be searched after the mounting of the roadblock.

She clarified that it was Sairos who caused plaintiff to be arrested for disorderly conduct and for verification of the particulars of his firearm in light of the mismatch of its serial number *vis-à-vis* its licence.

She justified the cuffing of the plaintiff to the body of the motor vehicle on the basis of the need to properly secure him. She stated in cross examination that there was no other means available of securing him. She further explained that no leg irons were available at that stage which would have obviated the risk of plaintiff leaping out of the motor vehicle *en route* to the police station.

The second defendant's witness Assistant Inspector Blessmore Sairos testified that he arrived a bit late at the road block, some 20 minutes after it was mounted. His evidence for the most part tallies with that of the first defendant's witness. It shall therefore not be necessary to repeat his evidence here save to highlight the following. That when he arrived at the roadblock she found the plaintiff's motor vehicle parked there and she was apprised by constable Moyo who was in charge thereof of what had transpired in his absence. She also observed that Moyo was still making the entries in the relevant register. Most importantly he testified when he enquired from the plaintiff's what problem was and why he was insulting police officers, the plaintiff's respondent by shouting expletives at him to the effect.

"*Mukosho wamai vako, ini handiitirwe zvechimhata*" Which when loosely translated means "*your mother's asshole, I don't tolerate any "asshole things"*

When he asked him the reason for the verbal abuse, he retorted that should simply continue with his journey to Masvingo and should not concern himself with what was happening.

He also confirmed in his testimony the discordance between the firearm Serial Number and the one on the firearm certificate. This appeared to have enraged the plaintiff even more who continued shouting and vowing that he would not be arrested.

He took audio recordings of this kerfuffle.

Further, according to him when he asked one of the police officers there present to also recorded the incident, the plaintiff started pulling Constable Marimo who was in uniform. It was then that he realised that the plaintiff was being violent that he ordered one Constable Nyereyehama to handcuff him. As soon as he arrested the plaintiff he called Inspector Kawanza to inform him what was happening.

He denied that what sparked the commotion was his improper wearing of the mask and insisted that he only dropped the mask when he was talking to Constable Moyo. He testified that the plaintiff swore that he was going to use his financial muscle to get him i.e. Sairos in hot soup

When Kuwanza was called he left and proceeded with his journey

He would deny in cross examination that he was not properly wearing his mask when conversing with the plaintiff and insisted that he only put it down when talking to Sgt Marimo as there was no need to keep it on at that stage. Needless to say, he denied having been incensed by plaintiff admonishing him for wearing his mask improperly or because plaintiff had dared to take pictures of him.

He categorically denied having confiscated plaintiff's cell phone, let alone having damaged one of them as alleged. He insisted that the plaintiff as a matter of fact handed these to constable Nyereyehama.

He explained under cross examination that it is possible for the police to levy a fine for disorderly conduct but they also have a discretion to take the alleged offender to court.

Regarding the question of the search of the accused motor vehicle, he explained that the officer in charge of the road block enjoys the discretion of searching some vehicles and not others.

The third and final defence witness was Inspector Peter Kuwanza. His evidence was basically that after receiving a call from Assistant Inspector Sairos he proceeded to the scene. He used a motor vehicle which had empty buckets so that he could also fetch water in addition to attending to the situation.

After fetching water from a nearby borehole he proceeded to the roadblock. At the material time he was the second in charge (deputy) of Bikita Police Station. He would confirm under cross examination that some four kilometres off the main tarred road to the police station is a gravel road.

He then subsequently took the plaintiff who was secured by means of having one of his wrists handcuffed to the anti-roll-bar of the motor vehicle. He explained that this was a means of ensuring that he would not escape. According to him the plaintiff faced two charges, one emanating from the firearm whose serial number did not match the one on the licence and that of disorderly conduct. However, the one relating to the firearm fell by the wayside after he had received confirmation from the Central firearms registry of the authenticity of the certificate/licence.

He further testified that the plaintiff subsequently paid an admission of guilt fine a copy of which was produced as an exhibit during these proceedings.

He denied that plaintiff was deliberately soaked in water, particularly given that he was seated in front and the plaintiff was in the loading box. He stated that should plaintiff have been soaked in water as alleged by him, it was definitely not by design or on purpose.

He denied that the plaintiff was subjected to torture. He would admit however when confronted with a photograph of the accused manacled to the bars of the motor vehicle that the handcuffs appeared to be tight but maintained that shackling the plaintiff to the anti-roll bars of that motor vehicle was not meant to cause him harm or discomfort.

On the question of whether plaintiff would have paid a fine for the offence of disorderly conduct, he explained plaintiff could have done so had he admitted the charge. He would categorically deny that plaintiff requested to contact his legal practitioner or his relative but was denied that opportunity. He pointed that the following day, one Sgt Mudhara a relative of the plaintiff came to see him (i.e., plaintiff)

The parties filed written closing submissions in support of their respective cases.

**The torture claim**

An action to recover damages arising from torture can be brought under the common law or in terms of the Constitution. Under the common law a torture survivor can bring a claim in delict for damages seeking monetary compensation for the harm suffered.

There are two main causes of action in delict: the *actio iniuriarum* which is a general remedy where there has been a wilful infringement of a person's bodily integrity, reputation or dignity, and the *actio legis aquiliae* (the 'Aquilian action") which applies to claims for actual patrimonial or pecuniary loss. Where there has been an intentional, wrongful and unlawful assault (such as torture or rape) causing physical and/or psychological harm, a claim lies under the *actio iniuriarum*. Here a plaintiff can claim sentimental damages without having to prove actual financial (patrimonial or pecuniary) loss, that is, money is claimed as compensatory damages for the pain and suffering as well as mental trauma inflicted. A claim can also be for the *contumelia* or insult to the person's dignity. The amount of compensation sought must be specifically claimed, and the sum awarded lies in the court's discretion broadly following sums awarded in previous similar cases.

Where a plaintiff has suffered actual pecuniary damages such as a loss of earnings or medical expenses then the claims are under the *Aquilian* action, whether the harm was caused

intentionally or negligently. The court can award these damages for the past financial loss as well as future prospective amounts. If the plaintiff is seeking both sentimental and pecuniary damages arising from the same incident then although these are claimed separately, they are brought in the same proceedings. In the case of an assault or torture this would be the usual position: a claim under both delictual actions.

Under the Constitution, s 53 provides for the protection against torture. It reads:

> **"53. Freedom from torture or cruel, inhuman or degrading treatment or punishment**
>
> No person may be subjected to physical or psychological torture or to cruel, inhuman or degrading treatment or punishment."

Meanwhile s 85 of the Constitution provides for the claim of compensation for conduct amounting to an infringement of one's constitutional rights. It reads:

> **"85. Enforcement of fundamental human rights and freedoms**
>
> 1. Any of the following persons, namely -
>
> a. any person acting in their own interests;
>
> b. any person acting on behalf of another person who cannot act for themselves;
>
> c. any person acting as a member, or in the interests, of a group or class of persons;
>
> d. any person acting in the public interest;
>
> e. any association acting in the interests of its members;
>
> is entitled to approach a court, alleging that a fundamental right or freedom enshrined in this Chapter has been, is being or is likely to be infringed, and the court may grant appropriate relief, including a declaration of rights and *an award of compensation*."

It is against this Constitutional background that the Zimbabwean law recognises the action brought for the recovery of damages arising from torture amongst other constitutional breaches. See *Jestina Mukoko* v *Attorney General*, S-11-12.

In the present matter, the claim was pleaded solely under the Constitution and it is the context in which it will be determined.

I must hasten to point to the variance between what was pleaded *vis a-vis* what the plaintiff subsequently sought to rely upon in support of his claim. It needs to be underscored that a matter is decided *inter alia* on the basis of what was *pleaded* on behalf of the parties. Care must therefore be taken when drawing up pleadings. See *Stellenbosch Farmers' winery group Ltd & Anor* v

*Martell et cie & Ors* 2003 (1) SA 11 SCA & *Keavney & Anor* v *Msabaeka Bus Service* Ltd S-22-18

In the present matter the plaintiff specifically alleged torture as the cause of action, yet in his closing submissions sought to rely on authorities decided on the basis of inhuman or degrading treatment, namely *Mapiye v Minister of Home Affairs & Ors* HH-146-18 & *Mukwemu* v *Magistrate Sanyatwe N.O.* & Anor HH-765-15. This is despite there being a difference between the two concepts. In the Jestina Mukoko case, *supra* the following was said in this regard:

> "There is a distinction intended to be made under s 15(1) of the Constitution between torture on the one hand and inhuman or degrading treatment on the other. The distinction between the notion of torture and the other two concepts lies principally in the intensity of physical or mental pain and suffering inflicted, in respect of torture, on the victim intentionally and for a specific purpose. Torture is an aggravated and deliberate form of inhuman or degrading treatment. What constitutes torture, or inhuman or degrading treatment depends on the circumstances of each case."

With regards to the first claim, the current matter therefore stands to be decided on the basis of torture as the cause of action.

In the *Jestina Mukoko* case, *supra*, the court accepted the definition of "torture provided in the United Nations Convention Against Torture and other Cruel or Inhuman and Degrading Treatment or Punishment 1987. MALABA DCJ (as he then was) said the following:

> "The definition of torture often adopted by courts as a minimum standard by which a determination of the question whether torture has been committed or not, is that provided under Article 1(1) of the United Nations Convention Against Torture and Other Cruel or Inhuman or Degrading Treatment or Punishment 1987 (hereinafter referred to as "the UN Convention on Torture"). Article 1(1) of the UN Convention on Torture provides that:
>
> > "... torture means any act by which *severe pain or suffering* whether physical or mental is intentionally inflicted on a person for such purposes as obtaining from him or a third person information or a confession, punishing him for an act he or a third person has committed or is suspected of having committed, or intimidating or coercing him or a third person, or for any reason based on discrimination of any kind, when such pain or suffering is inflicted by or at the instigation of or with the consent or acquiescence of a public official or other

> person acting in an official capacity. It does not indicate pain or suffering arising only from, inherent in or incidental to lawful sanction."

Further down the court observes that:

> "The definition of torture provided in Article (1)(1) is consistent with the interpretation by the Court in its case law of the concept as used in s 15(1) of the [old] Constitution. It is important to note that in terms of the definition, *the torture must be inflicted for the purpose of obtaining information or a confession*. This is the mischief at which the UN Convention on Torture is aimed."
>
> {emphasis added}

Finally, the court also remarked that:

> It follows from the definition of the relevant concepts that not every treatment which causes some discomfort to the person in detention violates s 15(1) of the Constitution. Otherwise no one could be arrested, detained and interrogated in the investigation of crime. The treatment must reach the minimum level of severity before it constitutes a breach of the absolute prohibition under the section. The assessment of the minimum level of severity is relative. The question whether or not the requisite threshold of breach of the fundamental right has been reached in a particular case is determined by the consideration of such factors as the nature and context of the treatment; manner and method of its execution, as well as the duration of the treatment, its physical and mental effects and in some cases the age, sex and state of health of the victim: *Ireland v United Kingdom supra* para 162, *S v Ncube & Ors* 1987(2) ZLR 246(S) at 271A-G, *Soering v United Kingdom* [1989] 11 EHRR 439 para 100. *Woods v Commissioner of Prisons & Anor supra* at 431G.

To summarise therefore torture connotes the deliberate infliction of physical, emotional or psychological pain to achieve an ulterior motive. The three key ingredients to support a claim for torture are therefore (i) the causing of *severe* pain or suffering and (ii) the *intentional* infliction on a person and (iii) committed for a *specific purpose* such as obtaining of information or a confession.

In the present case the claim for damages arising from torture is based on three key allegations, firstly that he was handcuffed to the motor vehicle in a cruel and malicious fashion. Secondly that he was deliberately made to be soaked in water *en- route* from the roadblock to the police station and thirdly that he was made to share a cell with other inmates in circumstances which exposed him to the COVID-19 virus.

In my opinion none of the three things can either taken in isolation or in conjunction meet the set criteria to sustain the claim for torture. Having arrested the plaintiff on suspicion of him having committed offences, the police had the right to handcuff him as a means of securing him. For purposes of transporting him to the police station they then proceeded to fasten him to the anti-roll bar of that motor vehicle. This was a single cab motor pick-up truck. In front was the driver and Inspector Kuwanza.

The only available was of transporting the plaintiff to the police station was by placing him in the loading box of that motor vehicle, no matter how unpalatable it might have been for him. Flowing from that is the fact that given the risk of his flight, which would have amounted to negligent conduct on their part, it was necessary to secure him one way or the other. Fastening his wrists to the bars of that motor vehicle cannot by any stretch of the imagination be deemed to amount to torture. Shackling a suspect to the back of a van in the course of covering a journey of approximately 10 km cannot in my view be adjudged to constitute torture.

The plaintiff has not in the least proposed a more humane way that his transportation to the police station than the one employed by the defendants. Even if it is to be accepted that handcuffing his wrists would probably have achieved the same purpose it has not been shown that the means employed to secure him was intentionally designed to inflict severe physical or psychological harm.

Further it was neither alleged nor was it proved that this means of securing the plaintiff was designed to extract a certain information or a confession.

The allegation of torture on the basis of being soaked in water is equally untenable. Torture cannot be committed through inadvertence. If indeed the plaintiff got somehow drenched by some of the water in the buckets, it can hardly be concluded that this was on purpose. It would have been a clumsy way of inflicting pain on the plaintiff. Most importantly, however, the claim fails the set criteria of *severity* and *intentional infliction* of as well as the *motive* for the conduct.

Finally, under the head of torture, it is in my view absurd to suggest that he was tortured by being made to share the same cell with other inmates without masks. Even if the other inmates had no masks, plaintiff was in as much a danger to those inmates as they were to him.

More importantly, however, the plaintiff failed to produce convincing evidence that that was the case. He could have brought one or some of the inmates to corroborate his version. As

things stand it is a question of his word against that of the police officer that he was deliberately or negligently exposed to COVID-19 by being made to share the cell with fellow unmasked inmates. He could have called his relative, a police officer who is on record as having visited him the following day. Similarly, the claim for torture under this specific allegation falls far short of the criteria of *severity* and *intentional infliction* of as well as the *motive* for the conduct.

**The Claim Under the head of "Unlawful Detention"**

The delict of unlawful detention is committed when the defendant, without lawful justification, restrains the liberty of the plaintiff by arresting or imprisoning him. See *Mapiy**e*** v *Minister of Justice & Ors* HH-146-18; *Feldman* v *Minister of Home Affairs* 1992 (2) ZLR 304 (S)

Professor Feltoe in his book "A guide to the Zimbabwean Law of Delict", 3rd Ed, 2001 at p56 states as follows in relation to this delict:

> "In our law it would seem that for this action it has to be proved only that the arrest or imprisonment was illegal and not that there was intention to act illegally or there was intention to cause harm to the plaintiff… In our law, as opposed to South African law, *animus injuriarum* is still a totally fictional requirement and therefore intention is not a requirement for this delict.
>
> Force is not a pre-requisite for this delict and neither is pecuniary loss. Damages can be awarded for affront or humiliation stemming from the arrest and imprisonment of the arrest.
>
> Obviously, if the arrest or detention is legal, such arrest and detention under the criminal procedure and Evidence Act [Chapter 9:07] or detention under the Emergency Powers Regulations, then this action cannot be brought"

Section 25 of the Criminal Procedure and Evidence Act provides as follows:

> **25. Arrest without warrant by peace officer or other officer**
>
> (1) Any peace officer and any other officer empowered by law to execute criminal warrants is hereby authorized, subject to the general or specific directions of a superior officer or person placed in authority over him, to arrest without warrant—
>
> (*a*) any person who commits any offence in his presence;
>
> (*b*) any person whom he or she has reasonable grounds to suspect of having committed any of the offences mentioned in the *First Schedule* or the *Ninth Schedule*:

In *Feldman* v *Minister of Home Affairs* (*supra*) GUBBAY CJ repeat what was said in *Attorney-General* v *Blumears & Anor* 1991 (1) ZLR 118 (S) at 122A-C:

> "The standard for the deprivation of personal liberty under s 13(2)(e) of the Constitution are facts and circumstances sufficient to warrant a prudent man in suspecting that the accused person had committed, or was about to commit, a criminal offence. This standard represents a necessary accommodation between the individual's fundamental right to the protection of his personal liberty and the State's duty to control crime. It seeks, on the one hand, to safeguard the individual from rash and unreasonable interference with liberty and privacy, and from unfounded charges of crime; yet, on the other, to give fair leeway for enforcing the law in the community's protection.
>
> The criterion of reasonable suspicion is a practical, non-technical concept which affords the best compromise for reconciling these often opposing interests. Requiring more would unduly hamper the legitimate enforcement of the law. To allow less would be to leave law-abiding persons at the mercy of the whim or caprice of the authorities."
>
> Now the onus of establishing that the arrest of the appellant was in compliance with s 29(1)(b) of the Criminal Procedure and Evidence Act [Chapter 59], and therefore lawful, rested upon the respondent. In this regard, the following remarks of Hefer JA in *Minister of Law & Order & Anor* v *Dempsey* 1988 (3) SA 19 (A) at 38B-C are relevant: "I accept, of course, that the onus to justify an arrest is on the party who alleges that it was lawfully made and, since an arrest can only be justified on the basis of statutory authority, that the onus can only be discharged by showing that it was made within the ambit of the relevant statute. Any statutory function can, after all, only be validly performed within the limits prescribed by the statute itself and, where a fact or a state of affairs is prescribed as a precondition to the performance of the function (a so-called jurisdictional fact), that fact or state of affairs must obviously exist and be shown to have existed before it can be said that the function was validly performed."

In the present case there are three questions to be interrogated; firstly, whether there was reasonable suspicion that plaintiff had committed an offence. If the answer to this question is in the affirmative the next question is whether the discretion to arrest was exercised reasonably and thirdly whether after the arrest the discretion to detain the plaintiff was reasonably exercised in the circumstances.

**Whether or not there was reasonable suspicion of plaintiff having committed an offence.**

Reasonable suspicion is not the same as proof beyond reasonable doubt. What is required is that the person making the arrest must have information on the basis of which a reasonable person would hold a suspicion that the person to be arrested had committed or was about to commit

the criminal offence. *Purcell-Gilpin* v *S* 1971 (1) RLR 241; *S* v *Miller* 1973 (2) RLR 387; *Allan* v *Minister of Home Affairs* 1985 (1) ZLR 339 (H); *Muzabazi* ***v*** *Jambawu & Ors* 1992 (2) ZLR 314 (H); & *AG* v *Blumears & Anor* 1991 (1) ZLR 118 (S)

That the plaintiff had committed an offence is hardly in dispute. He threw insults at the police officers.

The following are excerpts from the transcription of the audio clip of what happened at the road block. At page 1 the following appears:

> "Driver (i.e., plaintiff): What is it with mine, are you looking for one which is like this one?
> Police: You will say the police are troublesome
> Driver: Ha- aah I do not want man, your asshole
> Police: iih, ummh
> Driver: haa I do not want the asshole behaviour which you are portraying
> Police: it has been long since you have been insulting the police
> Driver: haa- a arrest me arrest me"

On the next page of that transcript the following is recorded:

> "Police: yes, no not telling on someone
> Driver: aah man, this is an asshole
> Police: aah!
> Driver am disappointed"

The transcript is littered with similar expletives being hurled at the police officers by the plaintiff. At some point the plaintiff uses the slur "*voetsek*!"

Section of the Criminal Law (codification & Reform) Act, [*Chapter 9:23*] provides that:

> **"41 Disorderly conduct in public place**
> Any person who, in a public place—
> (a) intentionally engages in disorderly or riotous conduct; or
> (b) uses threatening, *abusive or insulting words* or behaves in a threatening, abusive or insulting manner, intending to provoke a breach of the peace or realising that there is a real risk or possibility that a breach of the peace may be provoked;
>
> shall be guilty of disorderly conduct in a public place and liable to a fine not exceeding level five or imprisonment for a period not exceeding six months or both."

The conduct displayed by the plaintiff fits squarely into abusive or insulting words as contemplated in the above provision. The first requirement for a valid arrest was therefore established.

The half-hearted attempt to suggest that the plaintiff was not informed of the reason for the arrest can hardly find purchase. The transcript referred to earlier shows that the plaintiff was warned several times that he would be arrested for insulting police officers should he persist in that conduct. He did not take heed and continued regardless. When he was arrested it was clear that it was for the reason of those insults.

To cap it all by paying the admission of guilt fine the plaintiff shot himself in the foot, figuratively speaking. The plaintiff is not a naïve or unsophisticated person judging from his heated interaction with the police on the day. He is irreverent, bold and assertive. He is not overawed by the police.

To the contrary he appears to have some degree of disdain for them. Why then did he opt to pay an admission of guilt fine.

By paying an admission of guilt fine he was effectively admitting having broken the law in question. It therefore meant the police had arrested him on the basis of reasonable suspicion.

Additionally, the police had reasonable suspicion that the firearm which the plaintiff had in his possession was not properly registered. The serial number etched on it was at variance with the one on the firearm licence which he produced.

**Discretion to arrest**

It is now firmly established that the existence of reasonable suspicion does not ipso facto enjoins the police officer to arrest, he or she enjoys a discretion. See *Muzonda* v *Minister of Home Affairs & Anor* 1993 (1) ZLR 92 (S) & *Paradza* v *Minister of Justice & Ors* 2012 (1) ZLR 1 (S). If the circumstances do not justify an arrest the arrest will be deemed unlawful and the accused will be entitled to delictual damages. However, it is important to stress that the discretion to arrest can only be interfered with if it was grossly unreasonable.

In the *Muzonda* case (*supra*) it was held that although the police officer was authorised to arrest the appellant, he had a discretion as to whether to do so or not; the power to of arrest is not intended always, or even ordinarily to be exercised. Further the principles applicable to administrative law are applicable: the court would have to find that the exercise of the discretion was so outrageous in its defiance of logic or of accepted moral standards that no sensible person who had applied his mind his/her mind could have arrived at it. Some of the considerations to be

taken into account in determining whether an arrest is open to challenge are the possibility of escape, the prevention of further crime and the obstruction of police enquiries.

In the present matter, the attitude clearly displayed by the plaintiff was one of obstinacy and pure disdain. He dared the police to arrest him.

**Discretion to detain**

Section 50(2) of the Constitution and s 32(3) of the Criminal procedure and Evidence Act permit the police to detain an accused person for up to 48 hours before taking him to court. Section 50(2) of the Constitution reads:

Rights of arrested and detained persons

> (1) … [*not relevant*]
>
> 2) Any person who is arrested or detained —
> (a) for the purpose of bringing him or her before a court; or
> (b) for an alleged offence;
> and who is not released must be brought before a court as soon as possible and in any event **not later than 48 hours** after the arrest took place or the detention began, as the case may be, whether or not the period ends on a Saturday. Sunday or public holiday.

Similarly, s 32(2) of the Criminal Procedure & Evidence Act [Chapter 9:07] provides as follows:

> **32. Procedure after arrest without warrant**
> (1) …
> (2) Subject to subsections (3a), (3b) and (3c), a person arrested without warrant shall as soon as possible be brought to a police station or charge office and, if not released by reason that no charge is to be brought against him, may be detained for a period not exceeding **48 hours** unless he is brought before a judge or magistrate upon a charge of any offence and his further detention is ordered by that judge or magistrate or a warrant for his further detention is obtained in terms of section *thirty-three*.

The period for which the plaintiff was detained, even if one were to calculate it from 6am on 1 September 2021when the plaintiff was stopped at the road block to the time of his release the following day was less than 48 hours.

The same principles applicable to the discretion to arrest apply with regards to the discretion to detain. The plaintiff testified that he pleaded with the police to allow him to pay a

deposit fine. This is denied by the police officers who insisted that the plaintiff completely refused to pay and that it was only the following day that he relented and offered to pay.

The court is therefore faced with two mutually destructive versions. This then brings into sharp focus the question of how the assessment of evidence is done. The case of *Stellenbosch Farmers' winery group Ltd & Anor* v *Martell et cie & Ors* 2003 (1) SA 11 SCA, provided as useful general guideline. The following was said:

> "On the central issue; as to what the parties decided, there were two irreconcilable versions. So, too, on a number of peripheral areas of dispute which may have a bearing on the probabilities. The technique generally employed by courts in resolving factual disputes of this nature may conveniently be summarised as follows. To come to a conclusion on the disputed issues a court must make a finding on (a) the credibility of the various factual witness; (b) their reliability and (c) the probabilities. As to (a) the courts findings will depend on its impression about the veracity of the witnesses. That in turn will depend on a variety of subsidiary factors not necessarily in order of importance, such as (i) the witness candour and demeanour in the witness box, (ii) his bias, latent and blatant, (iii) internal contradictions in his evidence, (iv) external contradictions with what was pleaded on his behalf or with established fact or with his own extra-curial statements or actions (v) the probability or improbability of particular aspects of his version, (vi) the calibre and cogency of his performance compared to other witnesses testifying on the about the same incident or event. As to (b) a witness's reliability will depend apart from the factors mentioned under (a) (ii) and (v) above, on (i) the opportunities he had to experience or observe the event in question and (ii) the quality, integrity and independence of his recall thereof. As to (c), this necessitates an analysis and evaluation of the probability or improbability of each party's version on each of the disputed facts. In the light of its assessment of (a), (b) and (c) the court will then, as a final step, determine whether the party burdened with the onus of proof has succeeded in discharging it. The hard case which will doubtless be the rare one, occurs when a court's credibility findings compel it in one direction and its evaluation of the general probabilities in another. The more convincing the former, the less convincing will be the latter. But when all factors are equipoised probabilities prevail."

In *casu* I find the plaintiff's version hard to believe. He had been argumentative and downright obstinate throughout the day. I find it hard to believe that he changed his mind and opted to pay a fine later that day. I find from the probabilities of this case favour a finding from the evidence that he maintained his posture and stubbornly refused to pay. He firmly believed that he was in the right.

If the police were hell bent on "fixing" him for what they perceived to be intransigent conduct, they could have easily detained him for an additional 24 hours without running afoul of s 50 (2) of the Constitution or s 32 (2) of the CPEA.

Besides, I found the defendants' witnesses credible. They exercised commendable restraint in the face extreme provocation. The hubris which the plaintiff alleges to have consumed those police officers is in my view not a correct reflection of what actually transpired.

Ultimately therefore I find from the evidence firstly that the decision to detain the plaintiff cannot be said to be grossly unreasonable as to amount to actionable conduct. Secondly I find that it is improbable that the plaintiff offered to pay the deposit fine upon his arrival at Bikita police station. He only made an about turn the following morning

The claim for wrongful arrest and unlawful detention stands to be dismissed.

**The claim for damages for alleged denial of the right to communicate with legal representative and /or relatives**

The right to legal representation is sacred. It is one that cannot be lightly withheld. It is one of the cornerstones of the criminal justice system. Flowing from this is the right to communicate one's legal representative and/or with relatives and other persons close who are potentially helpful to the arrested or detained person. Section 50(5) provides as follows:

**50. Rights of arrested and detained persons**

(1) – (4) … [*not relevant*]

5) Any person who is detained, including a sentenced prisoner, has the right —

(a) to be informed promptly of the reason for their being detained;
(b) at their own expense, to consult in private with a legal practitioner of their choice, and to be informed of this right promptly;
(c) to communicate with, and be visited by —
(i) a spouse or partner;
(ii) a relative;
(iii) their chosen religious counsellor;
(iv) their chosen legal practitioner;
(v) their chosen medical practitioner; and

> (vi) subject to reasonable restrictions imposed for the proper administration of prisons or places of detention, anyone else of their choice;
> (d) to conditions of detention that are consistent with human dignity, including the opportunity for physical exercise and the provision, at State expense, of adequate accommodation, ablution facilities, personal hygiene. nutrition, appropriate reading material and medical treatment;

The plaintiff claims that he was denied the right in paragraphs (c)(i),(ii) & (iv) above. The defendants aver that he was not so denied this right. Critical to the resolution of this issue is the extract of the audio recording taken of the confrontation at the road block. It shows that the right to legal representation was explained to the plaintiff and he scoffed at the suggestion. The following is a small part of exchange which took place in this respect as depicted on page 2 of the transcript. It is the part that is relevant for the claim under the head of "denial to legal representation". This was soon after the police had formally informed the plaintiff that he was being placed under arrest and they, (i.e., the police) had taken his driver's licence.

> "Police: Is it, you are now under arrest
> Driver (i.e., plaintiff) it's okay
> Police: You are free [to] *seek for legal representation of your choice*
> Driver: Okay, haa no man you a *lawyer for what*?
> Police: they are your rights
> Driver: what rights are you telling me
> Police: Your rights
> Driver: rights for what?
> Police: They are your rights"

What is clear therefore is that the police clearly explained to the plaintiff in that heated moment, his right to legal representation and plaintiff rejected this in a huff. It is difficult to accept that the police subsequently withheld or otherwise denied him this right. Why would the police in one moment clearly explain this right to him and in the next moment withhold it from him? The probabilities favour a finding that the plaintiff, for reasons best known to himself spurned and therefore waived his right to legal representation.

Therefore, the claim based under the head denial of right to communicate with legal practitioner and/or relatives stands to be dismissed for lack of merit.

**The claim for damage to plaintiff's mobile phone**

The plaintiff's claim is hard to sustain in light of the evidence adduced. Firstly, he has not placed sufficient evidence to show that he had a Samsung S20 on the day in question. He could have for example produced evidence that he purchased such a mobile phone. Assuming for a moment that he no longer had such records, he could have obtained them from the retailer. Retailers usually have such records of such sales. He could have equally roped in the person who sold it to him should he have acquired it from someone other than a regular retailer.

He could also have brought extracts from the mobile service provider that he had used such a device to communicate. It is common knowledge that such data is easily available. Each time a person sends or receives a text message or an audio or video call data is captured of the description of the device and its serial number. He could have availed that information given that the onus rested on him to satisfy the court (on a balance of probabilities) that he indeed had such a device. These suggestions are not meant to be prescriptive as such but merely to buttress the point that such proof was absolutely given that the defendants were and are still denying that he had in his possession such a mobile phone handset.

**Costs**

The general principle is that the substantially successful party is entitled to his or costs. There is no reason why the defendants should be denied of their costs.

**ORDER**

The plaintiff's claim under each of the sub-heads be and is hereby dismissed in its entirety with costs.

Mutendi Mudisi & Shumba; Plantiff's legal practitioners
Civil Division of the Attorney General's office; defendants' legal practitioners